RNI No. MAHENG /2009/35528

# महाराष्ट्र शासन राजपत्र

## असाधारण भाग आठ

वर्ष ११, अंक १५] सोमवार, एप्रिल २८, २०२५/वैशाख ८, शके १९४७ [पृष्ठे २, किंमत : रुपये २७.००

**असाधारण क्रमांक ३६**

**प्राधिकृत प्रकाशन**

**महाराष्ट्र विधानमंडळाचे अधिनियम व राज्यपालांनी प्रख्यापित केलेले अध्यादेश व केलेले विनियम आणि विधि व न्याय विभागाकडून आलेली विधेयके (इंग्रजी अनुवाद).**

In pursuance of clause (*3*) of article 348 of the Constitution of India, the following translation in English of the Registration (Maharashtra Amendment) Act, 2023 (Mah. Act No. XXIII of 2025), is hereby published under the authority of the Governor.

By order and in the name of the Governor of Maharashtra,

SATISH WAGHOLE,
Secretary (Legislation) to Government,
Law and Judiciary Department.

---

**MAHARASHTRA ACT No. XXIII OF 2025.**

(First published, after having received the assent of the President in the the " Maharashtra Government Gazette", on the 28th April 2025).

*An Act further to amend the Registration Act, 1908, in its application to the State of Maharashtra.*

XVI of 1908.

WHEREAS it is expedient further to amend the Registration Act, 1908, in its application to the State of Maharashtra, for the purposes hereinafter appearing; it is hereby enacted in the Seventy-fourth Year of the Republic of India, as follows :—

Short title.

**1**. This Act may be called the Registration (Maharashtra Amendment) Act, 2023.

Insertion of new section 18A in XVI of 1908.

XVI of 1908.

**2.** After section 18 of the Registration Act, 1908, in its application to the State of Maharashtra (hereinafter referred to as "the principal Act"), the following section shall be inserted, namely :—

Refusal to register certain documents.

" **18A.** *(1)* Notwithstanding anything contained in this Act, the following classes of documents shall be refused for registration, namely :—

*(a)* the document relating to transaction, which is prohibited by any Central Act or State Act, for the time being in force ;

*(b)* the document relating to transfer of property by way of agreement for sale, sale, gift, exchange or lease or otherwise in respect of any immovable property owned by the Central Government or State Government or any Authority or undertaking of the Central Government or State Government or any authority or undertaking constituted or established under any Central Act or State Act, for the time being in force, executed by any person other than those statutorily empowered to do so ;

*(c)* the document relating to transfer of property by way of agreement for sale, sale, gift, exchange or permanent alienation or lease or otherwise pertaining to any immovable property which is attached permanently or provisionally by any competent authority under any Central Act or State Act, for the time being in force or any court or tribunal ;

*(d)* document of any description as may be prescribed by the State Government by rules made under this Act.

*(2)* Every rule made under this section shall be laid as soon as may be after it is made, before each House of the State Legislature. ".

Amendment of section 21 of XVI of 1908.

**3.** In section 21 of the principal Act,—

*(1)* in sub-section *(1)* for the words "unless it contains a description of such property sufficient to identify the same.", the following shall be substituted, namely :—

"unless it contains such description of the property, and accompanies with such papers and documents, as may be prescribed by the State Government by rules made under this Act, sufficient to identify the same." ;

*(2)* after sub-section *(1)*, the following sub-section shall be inserted, namely :—

"*(1A)* Every rule made under this section shall be laid as soon as may be after it is made, before each House of the State Legislature.".

Amendment of section 22 of XVI of 1908.

**4.** In section 22 of the principal Act, in sub-section *(2)*, after the words, brackets and figure "sub-section *(1)*", the words, brackets and figures "and sub-section *(1)* of section 21" shall be inserted.

ON BEHALF OF GOVERNMENT PRINTING, STATIONERY AND PUBLICATION, PRINTED AND PUBLISHED BY DIRECTOR, RUPENDRA DINESH MORE, PRINTED AT GOVERNMENT CENTRAL PRESS, 21-A, NETAJI SUBHASH ROAD, CHARNI ROAD, MUMBAI 400 004 AND PUBLISHED AT DIRECTORATE OF GOVERNMENT PRINTING, STATIONERY AND PUBLICATIONS, 21-A, NETAJI SUBHASH ROAD, CHARNI ROAD, MUMBAI 400 004. EDITOR : DIRECTOR, RUPENDRA DINESH MORE.

RNI No. MAHENG /2009/35528

# महाराष्ट्र शासन राजपत्र

## असाधारण भाग आठ

वर्ष ११, अंक १५] सोमवार, एप्रिल २८, २०२५/वैशाख ८, शके १९४७ [पृष्ठे २, किंमत : रुपये २७.००

**असाधारण क्रमांक ३६**

**प्राधिकृत प्रकाशन**

**महाराष्ट्र विधानमंडळाचे अधिनियम व राज्यपालांनी प्रख्यापित केलेले अध्यादेश व केलेले विनियम आणि विधि व न्याय विभागाकडून आलेली विधेयके (इंग्रजी अनुवाद).**

In pursuance of clause (*3*) of article 348 of the Constitution of India, the following translation in English of the Registration (Maharashtra Amendment) Act, 2023 (Mah. Act No. XXIII of 2025), is hereby published under the authority of the Governor.

By order and in the name of the Governor of Maharashtra,

SATISH WAGHOLE,
Secretary (Legislation) to Government,
Law and Judiciary Department.

---

**MAHARASHTRA ACT No. XXIII OF 2025.**

(First published, after having received the assent of the President in the the " Maharashtra Government Gazette", on the 28th April 2025).

*An Act further to amend the Registration Act, 1908, in its application to the State of Maharashtra.*

XVI of 1908.

WHEREAS it is expedient further to amend the Registration Act, 1908, in its application to the State of Maharashtra, for the purposes hereinafter appearing; it is hereby enacted in the Seventy-fourth Year of the Republic of India, as follows :—

Short title.

**1**. This Act may be called the Registration (Maharashtra Amendment) Act, 2023.

Insertion of new section 18A in XVI of 1908.

XVI of 1908.

**2.** After section 18 of the Registration Act, 1908, in its application to the State of Maharashtra (hereinafter referred to as "the principal Act"), the following section shall be inserted, namely :—

Refusal to register certain documents.

" **18A.** *(1)* Notwithstanding anything contained in this Act, the following classes of documents shall be refused for registration, namely :—

*(a)* the document relating to transaction, which is prohibited by any Central Act or State Act, for the time being in force ;

*(b)* the document relating to transfer of property by way of agreement for sale, sale, gift, exchange or lease or otherwise in respect of any immovable property owned by the Central Government or State Government or any Authority or undertaking of the Central Government or State Government or any authority or undertaking constituted or established under any Central Act or State Act, for the time being in force, executed by any person other than those statutorily empowered to do so ;

*(c)* the document relating to transfer of property by way of agreement for sale, sale, gift, exchange or permanent alienation or lease or otherwise pertaining to any immovable property which is attached permanently or provisionally by any competent authority under any Central Act or State Act, for the time being in force or any court or tribunal ;

*(d)* document of any description as may be prescribed by the State Government by rules made under this Act.

*(2)* Every rule made under this section shall be laid as soon as may be after it is made, before each House of the State Legislature. ".

Amendment of section 21 of XVI of 1908.

**3.** In section 21 of the principal Act,—

*(1)* in sub-section *(1)* for the words "unless it contains a description of such property sufficient to identify the same.", the following shall be substituted, namely :—

"unless it contains such description of the property, and accompanies with such papers and documents, as may be prescribed by the State Government by rules made under this Act, sufficient to identify the same." ;

*(2)* after sub-section *(1)*, the following sub-section shall be inserted, namely :—

"*(1A)* Every rule made under this section shall be laid as soon as may be after it is made, before each House of the State Legislature.".

Amendment of section 22 of XVI of 1908.

**4.** In section 22 of the principal Act, in sub-section *(2)*, after the words, brackets and figure "sub-section *(1)*", the words, brackets and figures "and sub-section *(1)* of section 21" shall be inserted.

ON BEHALF OF GOVERNMENT PRINTING, STATIONERY AND PUBLICATION, PRINTED AND PUBLISHED BY DIRECTOR, RUPENDRA DINESH MORE, PRINTED AT GOVERNMENT CENTRAL PRESS, 21-A, NETAJI SUBHASH ROAD, CHARNI ROAD, MUMBAI 400 004 AND PUBLISHED AT DIRECTORATE OF GOVERNMENT PRINTING, STATIONERY AND PUBLICATIONS, 21-A, NETAJI SUBHASH ROAD, CHARNI ROAD, MUMBAI 400 004. EDITOR : DIRECTOR, RUPENDRA DINESH MORE.

RNI No. MAHENG /2009/35528

# महाराष्ट्र शासन राजपत्र

## असाधारण भाग आठ

वर्ष ११, अंक १५] सोमवार, एप्रिल २८, २०२५/वैशाख ८, शके १९४७ [पृष्ठे २, किंमत : रुपये २७.००

**असाधारण क्रमांक ३६**

**प्राधिकृत प्रकाशन**

**महाराष्ट्र विधानमंडळाचे अधिनियम व राज्यपालांनी प्रख्यापित केलेले अध्यादेश व केलेले विनियम आणि विधि व न्याय विभागाकडून आलेली विधेयके (इंग्रजी अनुवाद).**

In pursuance of clause (*3*) of article 348 of the Constitution of India, the following translation in English of the Registration (Maharashtra Amendment) Act, 2023 (Mah. Act No. XXIII of 2025), is hereby published under the authority of the Governor.

By order and in the name of the Governor of Maharashtra,

SATISH WAGHOLE,
Secretary (Legislation) to Government,
Law and Judiciary Department.

---

**MAHARASHTRA ACT No. XXIII OF 2025.**

(First published, after having received the assent of the President in the the " Maharashtra Government Gazette", on the 28th April 2025).

*An Act further to amend the Registration Act, 1908, in its application to the State of Maharashtra.*

XVI of 1908.

WHEREAS it is expedient further to amend the Registration Act, 1908, in its application to the State of Maharashtra, for the purposes hereinafter appearing; it is hereby enacted in the Seventy-fourth Year of the Republic of India, as follows :—

Short title.

**1**. This Act may be called the Registration (Maharashtra Amendment) Act, 2023.

Insertion of new section 18A in XVI of 1908.

XVI of 1908.

**2.** After section 18 of the Registration Act, 1908, in its application to the State of Maharashtra (hereinafter referred to as "the principal Act"), the following section shall be inserted, namely :—

Refusal to register certain documents.

" **18A.** *(1)* Notwithstanding anything contained in this Act, the following classes of documents shall be refused for registration, namely :—

*(a)* the document relating to transaction, which is prohibited by any Central Act or State Act, for the time being in force ;

*(b)* the document relating to transfer of property by way of agreement for sale, sale, gift, exchange or lease or otherwise in respect of any immovable property owned by the Central Government or State Government or any Authority or undertaking of the Central Government or State Government or any authority or undertaking constituted or established under any Central Act or State Act, for the time being in force, executed by any person other than those statutorily empowered to do so ;

*(c)* the document relating to transfer of property by way of agreement for sale, sale, gift, exchange or permanent alienation or lease or otherwise pertaining to any immovable property which is attached permanently or provisionally by any competent authority under any Central Act or State Act, for the time being in force or any court or tribunal ;

*(d)* document of any description as may be prescribed by the State Government by rules made under this Act.

*(2)* Every rule made under this section shall be laid as soon as may be after it is made, before each House of the State Legislature. ".

Amendment of section 21 of XVI of 1908.

**3.** In section 21 of the principal Act,—

*(1)* in sub-section *(1)* for the words "unless it contains a description of such property sufficient to identify the same.", the following shall be substituted, namely :—

"unless it contains such description of the property, and accompanies with such papers and documents, as may be prescribed by the State Government by rules made under this Act, sufficient to identify the same." ;

*(2)* after sub-section *(1)*, the following sub-section shall be inserted, namely :—

"*(1A)* Every rule made under this section shall be laid as soon as may be after it is made, before each House of the State Legislature.".

Amendment of section 22 of XVI of 1908.

**4.** In section 22 of the principal Act, in sub-section *(2)*, after the words, brackets and figure "sub-section *(1)*", the words, brackets and figures "and sub-section *(1)* of section 21" shall be inserted.

ON BEHALF OF GOVERNMENT PRINTING, STATIONERY AND PUBLICATION, PRINTED AND PUBLISHED BY DIRECTOR, RUPENDRA DINESH MORE, PRINTED AT GOVERNMENT CENTRAL PRESS, 21-A, NETAJI SUBHASH ROAD, CHARNI ROAD, MUMBAI 400 004 AND PUBLISHED AT DIRECTORATE OF GOVERNMENT PRINTING, STATIONERY AND PUBLICATIONS, 21-A, NETAJI SUBHASH ROAD, CHARNI ROAD, MUMBAI 400 004. EDITOR : DIRECTOR, RUPENDRA DINESH MORE.